4/2/

20160128-0008246
Mary Hollinrake P:1/4 4:21PM
Kent Cnty MI Rgstr 01/28/2016 SEAL

RECORDED KENT COUNTY, MI ROD
2016 JAN 28 PM 4:21

PLAINFIELD CHARTER TOWNSHIP
GENERAL EASEMENT AND RIGHT-OF-WAY

[This conveyance is exempt from transfer tax pursuant to MCL 207.505(a) and MCL 207.526(a)]

KNOW ALL MEN BY THESE PRESENTS, that 43 NORTH CONDOMINIUM ASSOCIATION, whose address is 3115 Railway Drive, Byron Center, MI 49315, a nonprofit corporation organized under the laws of the State of Michigan, and WOLVEN INVESTMENTS, LLC, a Michigan limited liability company, whose address is 3115 Railway Drive, Byron Center, MI 49315, parties of the first part, for and in consideration of the sum of One Dollar ($1.00) paid to it by PLAINFIELD CHARTER TOWNSHIP, party of the second part, whose address is 6161 Belmont Ave., Belmont, MI 49306, pursuant to Section 6.2 of the Master Deed described below, do hereby convey, grant and release to the said party of the second part a permanent easement and right-of-way in which to construct, operate, maintain, repair and/or replace drains, sewers, water lines or other public service facilities or public utility facilities or any combinations thereof, over, across, under, and through a portion of the following parcels of land situated in the Township of Algoma, in the County of Kent, State of Michigan, known as the burdened parcels, and described as:

Unit 2 and Unit 24, 43 North, according to the Master Deed recorded in Document No. 20141113-0094509, Kent County Records, and designated as Kent County Condominium Subdivision Plan No. 982, together with rights in the general common elements and the limited common elements as shown on the Master Deed and as described in Act 59 of the Public Acts of 1978, as amended; and also Hopewell Drive, a private road designated in 43 North, according to the Master Deed recorded in Document No. 20141113-0094509, Kent County Records, and designated as Kent County Condominium Subdivision Plan No. 982.

Said drains, sewers, water lines or other public service facilities or public utility facilities shall be located within the easement and right-of-way which is described on the attached Exhibit A and depicted on the attached Exhibit B (the "Easement Area").

Plainfield Charter Township is also granted the right of ingress and egress through and within the burdened parcels to the Easement Area for the purpose of construction, operation, maintenance, repair and/or replacement thereof. It is understood that no buildings of any kind or nature will be placed upon the above permanent right-of-way without the prior written consent of Plainfield Charter Township.

Any existing buildings, structures or fences, the removal or demolition of which shall be required for the reasonable exercise of the foregoing powers, shall be removed or demolished at the expense of party of the second part. This conveyance includes a release of any and all claims to damage arising from or incidental to the exercise of any of the foregoing powers, except that if one or more of the burdened parcels and/or the Easement Area shall be disturbed by reason of the exercise of any of the foregoing powers, the same shall be restored to its original condition by the party of the second part.

This instrument shall be binding upon and inure to the benefit of the parties hereto, their heirs, representatives, successors and assigns.

20160128-0008246
Mary Hollinrake P:2/4 4:21PM
Kent Cnty MI Rgstr 01/28/2016 SEAL

IN WITNESS WHEREOF the parties of the first part has hereunto set its hand the day and year first written above.

GRANTOR:
43 North Condominium Association

By: _____
Dale H. Kraker
Its: President

Wolven Investments, LLC

By: _____
Dale H. Kraker
Its: Manager

STATE OF MICHIGAN)
) SS
COUNTY OF KENT)

The foregoing instrument was acknowledged before me this 26th day of January, 2016, by Dale H. Kraker, the President of 43 North Condominium Association, a nonprofit corporation organized under the laws of the State of Michigan, on behalf of the corporation.

_____
*Jeff Klaasen
Notary Public, Kent County, Michigan
Acting in Kent County, Michigan
My commission expires September 26, 2021

STATE OF MICHIGAN)
) SS
COUNTY OF KENT)

The foregoing instrument was acknowledged before me this 26th day of January, 2016, by Dale H. Kraker, the Manager of Wolven Investments, LLC, a Michigan limited liability company organized under the laws of the State of Michigan, on behalf of the corporation.

_____
*Jeff Klaasen
Notary Public, Kent County, Michigan
Acting in Kent County, Michigan
My commission expires September 26th, 2021

Prepared by:
Todd A. Hendricks (P45782)
Rhoades McKee PC
55 Campau Ave., NW, Suite 300
Grand Rapids, MI 49503
(616) 233-5128

When Recorded Return To:
Plainfield Charter Township
6161 Belmont Ave., N.E.
Belmont, MI 49306
(616) 364-8466

*Print or type name beneath signature line

20160128-0008246
Mary Hollinrake P:3/4 4:21PM
Kent Cnty MI Rgstr 01/28/2016 SEAL

Exhibit A

Legal Description for Easement Area

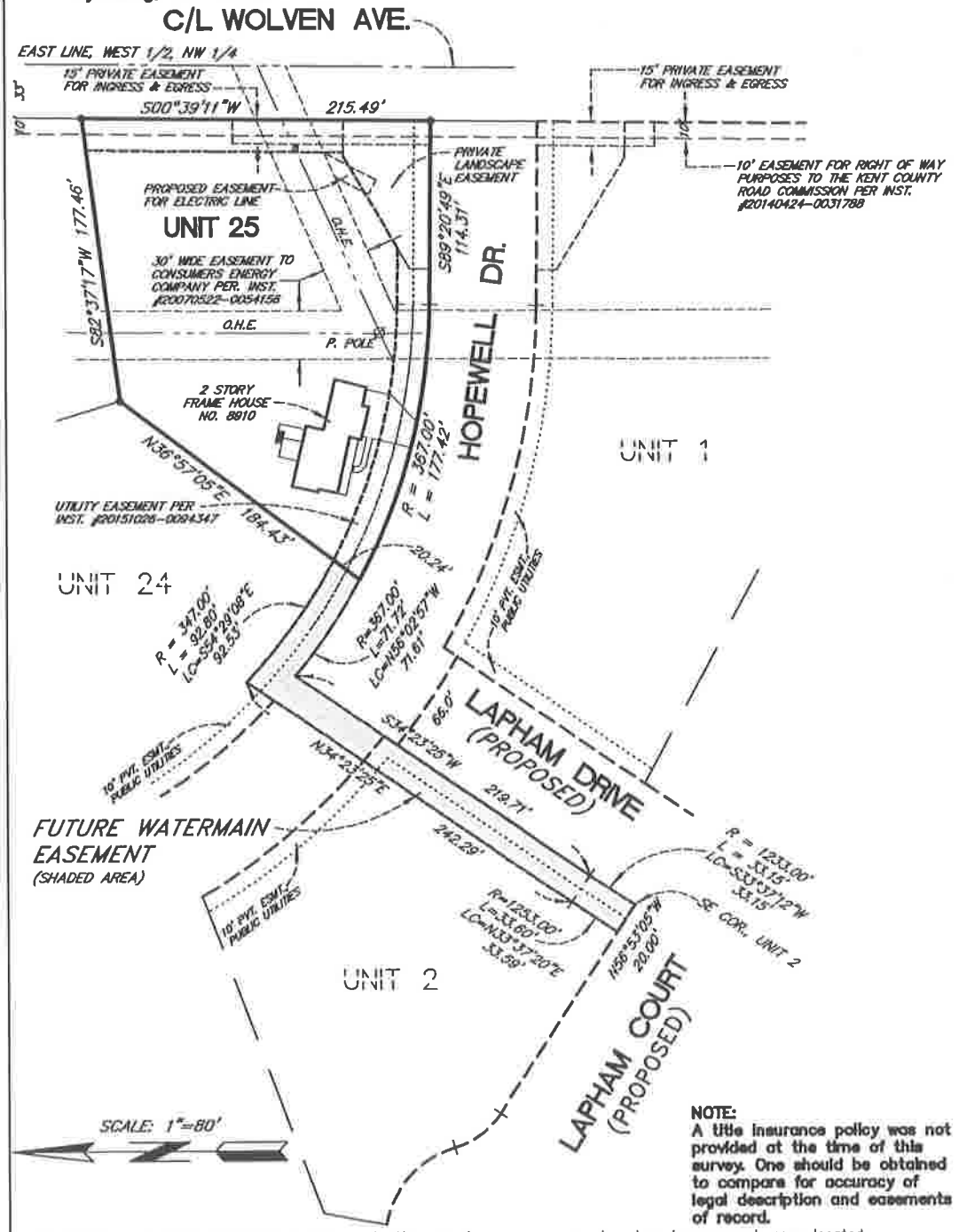
LEGAL DESCRIPTION

FUTURE WATERMAIN EASEMENT: A 20 foot wide easement for watermain in part of 43 North, a Site Condominium in Algoma Township, Kent County, Michigan, according to the Master Deed recorded in Document No. 20141113-0094509, Kent County Records, as amended, and designated as Kent County Condominium Subdivision Plan No. 982, described as: Beginning at the Southeast corner of Unit 2 of said 43 North, a Site Condominium; thence N56°53'05"W 20.00 feet along the Southerly line of said Unit 2; thence Northeasterly 33.60 feet along a 1253.0 foot radius curve to the right, the long chord of which bears N33°37'20"E 33.59 feet; thence N34°23'25"E 242.29 feet; thence Southeasterly 92.80 feet along a 347.00 foot radius curve to the left, the long chord of which bears S54°29'08"E 92.53 feet; thence S36°57'05"W 20.24 feet along the Westerly line of Unit 25 of said 43 North, a Site Condominium; thence Northwesterly 71.72 feet along the Northerly right of way line of Hopewell Drive (66 feet wide), along a 367.00 foot radius curve to the right, the long chord of which bears N56°02'57"W 71.61 feet; thence S34°23'25"W 219.71 feet along the Easterly line of said Unit 2 and it's Northerly extension thereof; thence Southwesterly 33.15 feet along the Easterly line of said Unit 2 along a 1233.00 foot radius curve to the left, the long chord of which bears S33°37'12"W 33.15 feet to the Place of Beginning.

Project No. **151448a**
Date: **January 19, 2016**
For: **Jeff Klaasen**
Jim Tibbe Homes
1777 R W Berends SW
Wyoming, MI 49519

EXHIBIT B
Survey of Easement Area

LEGAL DESCRIPTION
(See Sheet 2 of 2)



NOTE:
A title insurance policy was not provided at the time of this survey. One should be obtained to compare for accuracy of legal description and easements of record.

This drawing is for legal description purposes only. No property corners were set and no improvements were located.

LEGEND

- o - IRON STAKE – SET
- ● - IRON FOUND
- □ - WOOD STAKE
- R - RECORDED DIMENSION
- D - DEED DIMENSION
- P - PLATTED DIMENSION
- M - MEASURED DIMENSION
- ℄ - CENTERLINE

20160128-0008246
Roo Mary Hollinrake P:4/4 4:21PM
SURVE Kent Cnty MI Rgstr 01/28/2016 SEAL

LAND SURVEYOR No. 31604

5055 PLAINFIELD AVENUE, NE
GRAND RAPIDS, MICHIGAN 49525
TEL. (616) 361-7220
FAX (616) 361-1822

BY